

SYNTHETIC APPELLATE DOCKET — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

JUDGMENT

Disposition

Entered June 15, 2026.

In accordance with the opinion entered this date, the court **AFFIRMS** the district court's December 1, 2025 order insofar as it excluded the materially new subject in the late Wynn declaration while preserving Wynn's timely disclosed comparator testimony. The court **VACATES** the December 19, 2025 summary judgment and final judgment on Benton's Title VII retaliation claim. The admitted record, viewed in Benton's favor, presents genuine disputes of material fact concerning pretext and but-for causation.

The case is **REMANDED** to the United States District Court for the Eastern District of Virginia for proceedings consistent with the opinion. The court expresses no view on witness credibility or the ultimate merits. Each party shall bear its own costs in this court because the judgment affords mixed relief. The formal disposition is: **AFFIRMED IN PART, VACATED IN PART, AND REMANDED.**

JUDGMENT

Entry and post-judgment dates

Judgment is entered on June 15, 2026. No party to this private civil appeal is the United States, a United States agency, or a federal officer sued in an official capacity. Unless a rule or order changes the time, a petition for panel rehearing or rehearing en banc is due fourteen calendar days after entry, on June 29, 2026. The filing of a timely petition affects the ordinary mandate date as provided by Rule 41.

If no timely rehearing petition or qualifying stay matter is present and no order changes the schedule, mandate is due seven days after the rehearing period expires, on July 6, 2026. The clerk shall calculate the applicable dates from this judgment and the actual docket events. The opinion and this judgment remain distinct documents, and neither is altered by the statement of ordinary post-judgment dates.